LAW & MOTION CALENDAR
TENTATIVE RULINGS

June 11, 2026

Judge R. Shawn Nelson
Department C10

Department C10 hears law and motion on Thursdays at 10:00 a.m. and 1:30 p.m.

Court reporters: Official court reporters are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth in the Privately Retained Court Reporter Policy on the court's website at www.occourts.org.

Tentative rulings: The court endeavors to post tentative rulings on the court's website by 9:00 a.m. the day of the hearing. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5210. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Appearances and public access: Appearances, whether in person or remote, must comply with Civil Procedure Code section 367.75, California Rule of Court 3.672, Orange County Superior Court Local Rule 375, and Orange County Superior Court Appearance Procedure and Information—Civil Unlimited and Complex (pub. 9/9/22).

Unless the court orders otherwise, remote appearances will be conducted via Zoom. All counsel and self-represented parties appearing via Zoom must check in through the court's civil remote appearance website before the hearing begins. Check-in instructions are available on the court's website.

The public may attend hearings by coming to court or via remote access as described above.

Photographing, filming, recording, and/or broadcasting court proceedings are prohibited unless authorized pursuant to California Rule of Court 1.150 or Orange County Superior Court Local Rule 180.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling.

NO.	CASE NAME	MATTER
10 a.m.		
1	Thompson v. Doan	Case Management Conference The Case Management Conference is continued to July 09, 2026, at 10:00 a.m. in this department. Plaintiff to give notice.

		<u>Motion to Be Relieved as Counsel of Record</u> Counsel Fortra Law through Jacoby Perez moves to be relieved as counsel of record for Defendant Tri Minh Doan ("Client"). For the following reasons, the motion is **GRANTED**. The court has reviewed the materials submitted by Moving Counsel and finds that counsel has complied with the requirements of Rule 3.1362. The clerk is ordered to update the proposed order to reflect the following changes: - Add appearances in Section 2 - In section 7(a), strike the information currently included and indicate the next scheduled hearing is set for: 07/09/2026 at 10:00 AM in Department C10, Central Justice Center, 700 W. Civic Center Dr., Santa Ana, CA 92701 - In section 7(b), modify the information currently included and indicate the hearing will also concern: Motion by Attorney John Anthony Thompson to Be Relieved as Counsel of Record The court's order shall become effective upon the filing of the proof of service of the signed order on the Client. Moving Counsel is ordered to give notice by non-electronic and electronic means to Client Tri Minh Doan and all other parties.
1:30 p.m.		
1	Okanina v. Hyundai Motor America	Defendant Hyundai Motor America's ("HMA") motion to compel arbitration and stay the action is **DENIED**. HMA's request for judicial notice is GRANTED. Plaintiff's Evidentiary Objections to Declarations of Jennah Feeley and Vijay Rao should be OVERRULED. [The moving party "is not required to authenticate an opposing party's signature on an arbitration agreement as a preliminary matter." (*Ruiz v. Moss Bros Auto Group, Inc*. (2014) 232 Cal.App.4th 836, 846.)] The right to arbitration depends upon contract, and thus, a motion to compel arbitration is akin to a suit in equity seeking specific performance of that contract. (See *Little v. Pullman* (2013) 219 Cal.App.4th 558, 565.) The parties may, among other things, agree that the arbitration agreement will be controlled by the Federal Arbitration Act ("FAA"), which includes both procedural and substantive provisions. (See *Rodriguez v. American Technologies, Inc.* (2006) 136 Cal.App.4th 1110, 1122.) The Federal Arbitration Act governs here as the Warranty Arbitration Provision expressly provides that it "shall be governed by the Federal Arbitration Act, 9 U.S.C. §§ 1-16." (Feeley Decl., Exh. 2 [Warranty] at p. 14.) Accordingly, the FAA applies. The FAA states that written arbitration agreements "shall be valid, irrevocable, and enforceable, save upon such grounds as exist at law or

in equity for the revocation of any contract." (9 U.S.C. § 2.) The United States Supreme Court has described this provision as reflecting both a "liberal federal policy favoring arbitration," and the "fundamental principle that arbitration is a matter of contract." (*AT&T Mobility LLC v. Concepcion* (2011) 563 U.S. 333, 339.)

The FAA permits agreements to arbitrate to be invalidated by "generally applicable contract defenses, such as fraud, duress, or unconscionability." (*Concepcion*, supra, 563 U.S. at p. 339.) When deciding whether a valid arbitration agreement exists, courts generally apply "ordinary state-law principles that govern the formation of contracts." (*First Options of Chicago, Inc. v. Kaplan* (1995) 514 U.S. 938, 944.) "[T]he party resisting arbitration bears the burden of proving that the claims at issue are unsuitable for arbitration." (*Green Tree Fin. Corp. v. Randolph* (2000) 531 U.S. 79, 91.)

On a motion to compel arbitration under the FAA, the court's role is limited to deciding: "(1) whether there is an agreement to arbitrate between the parties; and (2) whether the agreement covers the dispute." (*Brennan v. Opus Bank* (9th Cir. 2015) 796 F.3d 1125, 1130.) If these conditions are satisfied, the court is without discretion to deny the motion and must compel arbitration. (9 U.S.C. § 4; *Dean Witter Reynolds, Inc. v. Byrd* (1985) 470 U.S. 213, 218 ["By its terms, the [FAA] leaves no place for the exercise of discretion by a district court, but instead mandates that district courts shall direct the parties to proceed to arbitration."].)

"[T]he party resisting arbitration bears the burden of proving that the claims at issue are unsuitable for arbitration." (*Green Tree Fin. Corp*., supra, 531 U.S. at p. 91.)

1. **Existence of Agreement to Arbitrate**

A party moving to compel arbitration bears an initial burden of producing "prima facie evidence of a written agreement to arbitrate the controversy." (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165–166.) The moving party "can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party's] signature." (*Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th 541; see also *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060 [holding same].) For this step, "it is not necessary to follow the normal procedures of document authentication." (*Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 218.) If the moving party meets its initial prima facie burden and the opposing party does not dispute the existence of the arbitration agreement, then nothing more is required for the moving party to meet its burden of persuasion.

<u>Warranty Booklet</u>

Plaintiff, in opposition, contends that HMA's reliance on the warranty booklet is defective because HMA failed to properly authenticate it. However, HMA, as the moving party, "is not required to authenticate an opposing party's signature on an arbitration agreement as a preliminary matter" (*Ruiz v. Moss Bros Auto Group, Inc.* (2014) 232 Cal.App.4th

		836, 846, italics omitted), and "the court is only required to make a finding of the agreement's existence, not an evidentiary determination of its validity." (*Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 219). If the moving party meets its initial burden of production, the burden shifts to the party opposing arbitration to produce evidence challenging the authenticity of the agreement. (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165.) If that burden is met, "the moving party must establish with admissible evidence a valid arbitration agreement between the parties." (Ibid.) Here, HMA meets its initial prima facie burden of establishing the existence of a written arbitration provision, in the Warranty. In Opposition, Plaintiff does not dispute the existence of the arbitration provision in the vehicle's written warranty or that he accepted the benefits of that agreement by presenting the vehicle for repair. Plaintiff also submits no evidence that he opted out of the agreement. *However*, Plaintiff declares that to the best of his memory, he was not provided with a copy of any Owner's Handbook and Warranty Information booklet when he leased the Subject Vehicle and was never given any notice that it contained an arbitration provision or an opt-out provision. This motion is the first Plaintiff has heard about it. Plaintiff never signed an agreement to arbitrate nor did he ever consent to arbitration. It is undisputed that Plaintiff never signed an agreement to arbitrate claims between HMA and himself. In Reply, HMA argues and presents evidence that in California, all vehicles sold at authorized Hyundai dealerships include a Owner's Handbook. <u>However, there is no evidence that Plaintiff received one in this instance</u>. Thus, Defendant HMA has failed to establish a valid arbitration agreement between the parties. Accordingly, the motion to compel arbitration based upon the warranty booklet is DENIED. <u>Bluelink Customer Services Agreement</u> HMA has failed to meet its burden to demonstrate the Arbitration Agreement in the Bluelink CSA covers all of Plaintiff's claims in this action. While the Bluelink CSA Arbitration Agreement purports to cover any and all disputes between the parties regarding "[plaintiff's] Vehicle"—the scope of an arbitration clause turns on whether the claims are "rooted" in the contractual relationship between the parties. (*Ahern v. Asset Management Consultants, Inc*. (2022) 74 Cal.App.5th 675, 692.) To be arbitrable, the subject claims must have their roots in the relationship between the parties that was created by the contract containing the arbitration provision. (*Id*. at pp. 692-693; *Rice v. Downs* (2016) 248 Cal.App.4th 175, 188.) "[E]ven under a very broad arbitration provision, such as 'any controversy or claim arising out of or relating to this agreement,' " the subject claims must " ' "have their roots in the relationship between the parties which was created by the contract" ' before they can be deemed to fall within the scope of the arbitration provision." (*Rice*, *supra*, 248 Cal.App.4th at p. 188.)

		Here, the Bluelink CSA governs the provision of Connected Services, i.e., the wireless/technology services received as part of the enrollment in a Bluelink Connected Services subscription. (Rao Decl. ¶ 6, Feeley Exh. 3.) Plaintiff's claims, however, go far beyond this scope. Plaintiff alleges the Subject Vehicle was defective, was not able to be repaired in a timely manner, and HMA failed to replace the Subject Vehicle or make restitution. (See Complaint, generally.) The Connected Services contemplated in the CSA do not implicate Plaintiff's allegations. Accordingly, Plaintiff's claims do not "have their roots in the relationship" created by the CSA. Based upon the foregoing, the motion to compel arbitration based upon the CSA is DENIED. Plaintiff to give notice. <u>Case Management Conference</u> The Case Management Conference is continued to August 13, 2026, at 9:00 a.m. in this department. Plaintiff to give notice.
2	Schein v. B&B Collision & Coachwerks, Inc.	Off calendar.
3	Lopez v. Cross Roads Apartments	Defendant FDK Enterprises LP A Calif Ltd Partnership Magellan Management LLC dba Cross Roads Apartments moves to compel Plaintiff Tina Lopez to respond to the first set of form interrogatories, special interrogatories, and demand for inspection and production of documents. For the following reasons, the motions are **GRANTED**. Responses to interrogatories and inspection demands are due 30 days after service (plus appropriate time for method of service). (Code Civ. Proc. §§ 2030.260; 2031.260.) If the party to whom a discovery request is directed fails to respond timely, that party waives all objections, including claims of privilege and work product protection. (Code Civ. Proc. §§ 2030.290(a) (interrogatories); 2031.300(a) (inspection demands).) On September 15, 2025, Defendant served Plaintiff with the first set of form interrogatories, special interrogatories, and demand for inspection and production of documents. (Chang Declarations, ¶¶ 2-5, Ex. A and B.) Plaintiff has not served responses to the discovery requests. (Ibid.) Plaintiff has not filed an Opposition, and there is no evidence that Plaintiff responded to the discovery requests. As a result of Plaintiff's failure to respond to the discovery requests, Defendant is entitled to an order compelling responses without objections. (Code Civ. Proc. §§ 2030.290, 2031.300.)

		Plaintiff is ORDERED to serve responses without objections to the first set of form interrogatories, special interrogatories, and demand for inspection and production of documents within 30 days. Sanctions are available on motions to compel responses to interrogatories and inspection demands. (Code Civ. Proc. § 2030.290(c), § 2031.300(c). ("The court shall impose a monetary sanction … against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response … unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.").) Defendant seeks sanctions of $507 (2 attorney hours at $186/hour + 1 legal assistant hour at $75/hour + $60 filing fee) for each of the three motions, for a total of $1,521. This request is excessive, as no opposition was filed and much of the time spent was duplicative for the three motions. Plaintiff is ORDERED to pay monetary sanctions of $321 (1 attorney hour at $186/hour + 1 legal assistant hour at $75/hour + $60 filing fee) for each of the three motions, for a total of $963. Plaintiff shall pay the sanctions of $963 by July 16, 2026. Defendant shall give notice of this ruling.
4	9 Whatney, LLC v. Mayrock Automotive, Inc.	Plaintiff/Cross-Defendant 9 Whatney, LLC, and Cross-Defendant Hezy Shaked move to recover attorney's fees. The motion is CONTINUED to July 16, 2026, at 1:30 p.m. in this Department. A party moving to recover attorney's fees has the burden of: (1) establishing entitlement to an award, and (2) documenting the appropriate hours expended and hourly rates. (*ComputerXpress, Inc. v. Jackson* (2001) 93 Cal.App.4th 993, 1020.) The Moving Parties argue they are entitled to fees under the 2022 Lease. (*See* Mot. at 9:1-18; Larson Decl., Ex. A.) Contractual attorney's fees are recoverable as costs. (Code Civ. Proc., § 1033.5(a)(10)(A).) Civ. Code Section 1717(a) provides that: "In any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs. . . . Reasonable attorney's fees shall be fixed by the court, and shall be an element of the costs of suit." Any resolution of a contract action to enforce the agreement must be accompanied by an award of reasonable attorney fees to the prevailing party, regardless of the reason for the judgment. (*See Real Property Services Corp. v. City of Pasadena* (1994) 25 Cal.App.4th 375, 384 n. 7 [holding the prevailing defendant is entitled to recover fees where the nonsignatory plaintiff lacked standing to pursue the contract claim].)

		A prevailing party in a contract action may recover reasonable attorney's fees incurred only in that party's defense of the covered contract claims. (*Hill v Affirmed Hous. Group* (2014) 226 Cal.App.4th 1192, 1197.) To the extent that shared counsel engaged in litigation activity on behalf of another defendant for which fees are not recoverable, the judge has broad discretion to apportion fees, even if the issues are connected, related, or intertwined. (*Zintel Holdings, LLC v McLean* (2012) 209 Cal.App.4th 431, 443.) Although timekeeping and billing procedures may make a requested segregation difficult, they do not make allocation impossible. (*Hill v Affirmed Hous. Group, supra*, 226 Cal.App.4th at p. 1197.) Nevertheless, allocation of fees incurred is not required when the claims at issue are inextricably intertwined, such that it is impossible to differentiate between time that is compensable and time that is not compensable. (*Ibid.*) For example, a court may exercise its discretion not to apportion fees between an LLC and its managing member where the defenses asserted by the LLC manager and the LLC were so interrelated that it would have been impossible to separate them into time units billed on behalf each represented party. (*See id.* at pp. 1197–1198.) Here, the 2022 Lease provides for the recovery of fees by only parties or brokers to the 2022 Lease. Specifically, paragraph 31 of the 2022 Lease provides: If any Party or Broker brings an action or proceeding involving the Premises whether founded in tort, contract or equity, or to declare rights hereunder, <u>the Prevailing Party (as hereafter defined)</u> in any such proceeding, action, or appeal thereon, shall be entitled to reasonable attorneys' fees. . . . The term, "Prevailing Party" shall include, without limitation, a Party or Broker who substantially obtains or defeats the relief sought, as the case may be, whether by compromise, settlement, judgment, or the abandonment by the other Party or Broker of its claim or defense. The attorneys' fees award shall not be computed in accordance with any court fee schedule, but shall be such as to fully reimburse all attorneys' fees reasonably incurred. In addition, Lessor shall be entitled to attorneys' fees, costs and expenses incurred in the preparation and service of notices of Default and consultations in connection therewith . . . . (Larson Decl., Ex. A at ¶ 31 [emphases added].) The Lease defines "Parties" to include Lessor 9 Whatney, LLC and Lessee Mayrock Automotive, Inc. (Larson Decl., Ex. A at ¶ 1.1.) The Lease defines "Brokers" to include CBRE, Inc., Gregg Haly/Chip Write/Kelly Kayl, Pacific ProPartners, and Eric Yao. (Larson Decl., Ex. A at ¶ 1.9.) Defendant Mayrock Inc., Defendant Plainview Management Corp., and Cross-Defendant Shaked are not parties to the 2022 Lease. No later than nine (9) court days before the continued hearing, Moving Parties shall file and serve a supplemental brief that addresses: (1) Moving Parties' right to recover fees incurred to pursue claims against the nonsignatory defendants Mayrock Plainview Management Corp.; and/or (2) Cross-Defendant's right to recover reasonable attorney's fees. The supplemental brief be no more than five (5) pages in length.

		No later than five (5) court days before the continued hearing, Defendants may file and serve a responsive brief that addresses any new arguments or evidence submitted in Moving Parties' supplemental filing(s). Moving Parties to give notice.
5	Betancourt v. Airstream, Inc.	Defendant Airstream, Inc. moves to compel Plaintiffs Mark A. Betancourt and Gail Ann Ortiz to provide further responses to Defendant's first set of form interrogatories, special interrogatories, and requests for production of documents. For the following reasons, the motion is DENIED. Both Defendant and Plaintiffs' request for monetary sanctions are DENIED. "[A]ny party shall be entitled as a matter of right to complete discovery proceedings on or before the 30th day, and to have motions concerning discovery heard on or before the 15th day, before the date initially set for the trial of the action." (Code Civ. Proc. § 2024.020(a).) The date this matter was initially set for trial was February 9, 2026. (ROA 43.) Thus, the last day for discovery motions to be heard was January 26, 2026. On January 14, 2026, Defendant moved ex parte for an order continuing trial. The Court's Minute Order on that ex parte application states in part: The Trial is continued to 08/17/2026 at 09:00 AM in Compliance with Local Rule 317 is required. There is no order to continue the deadlines. In other words, the court's order continuing the trial to August 17, 2026 did *not* extend the discovery cutoff. "Except as provided in Section 2024.050, a continuance or postponement of the trial date does not operate to reopen discovery proceedings." Code Civ. Proc. § 2024.020(b). "Parties to an action may with the consent of any party affected by it, enter into an agreement to extend the time for the completion of discovery proceedings or for the hearing of motions concerning discovery, or to reopen discovery after a new date for trial of the action has been set. This agreement may be informal, but it shall be confirmed in a writing that specifies the extended date...." (Code Civ. Proc. §2024.060.) Defendant has presented no evidence of any agreement to extend the discovery motion cutoff date. In short, Defendant's motions are untimely. In the absence of a motion to reopen discovery – which Defendant has not filed – the court cannot grant the motion. One such court granted a motion to compel after the discovery cutoff had expired. "By simply hearing the motion to compel without first deciding whether discovery should be reopened for that purpose under

		all of the relevant circumstances, the trial court 'transgresse[d] the confines of the applicable principles of law' [Citation] and thereby abused its discretion." (*Pelton-Shepherd Industries, Inc. v. Delta Packaging Products, Inc.* (2008) 165 Cal.App.4th 1568, 1588 (reversing order granting untimely motion to compel).) In its Reply, Defendant quotes *Pelton-Shepherd Industries*, "But the fact that a party does not have a *right* to have a discovery motion heard after the discovery motion cutoff date does not mean the court has no *power* to hear it, or that the court errs in hearing it." (*Pelton-Shepherd Industries, supra,* 165 Cal.App.4th at 1586.) However, the Court of Appeal in that matter held that a party must file a motion to reopen discovery or have a motion heard after the discovery cutoff. (Ibid.) Indeed, the Court of Appeal held that the trial court abused its discretion by hearing the motion to compel without first reopening discovery. (Id. at 1587.) Here, the Court already denied Defendant's first request to have these discovery motions heard after the discovery cutoff, and Defendant has not filed a motion to reopen discovery. Accordingly, the motions are denied. Pursuant to Code Civ. Proc. §§ 2030.300 and 2031.310, the Court shall impose a monetary sanction against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to an interrogatory or inspection demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. The motions were made with substantial justification, as Plaintiffs have asserted boilerplate objections that largely lack merit. Both Defendant and Plaintiffs' request for monetary sanctions are denied. Defendant shall give notice of this ruling.
6	Lampley v. Hermosa 2019 LP	Jamala Y. Garcia's motion to substitute Ms. Garcia as Successor in Interest in place of Plaintiff El Veasta Lampley is **CONTINUED TO** January 21, 2027, at 1:30 p.m. in this department for supplemental briefing, as discussed below. <u>Legal Authority</u> "On motion after the death of a person who commenced an action or proceeding, the court shall allow a pending action or proceeding that does not abate to be continued by the decedent's personal representative or, if none, by the decedent's successor in interest." (Code Civ. Proc., § 377.31.) "Decedent's successor-in-interest" means "the beneficiary of the decedent's estate or other successor in interest who succeeds to a cause of action or to a particular item of the property that is the subject of a cause of action." (Code Civ. Proc., § 377.11.)

"The person who seeks to commence an action or proceeding or to continue a pending action or proceeding as the decedent's successor in interest" must execute and file an affidavit or declaration that contains seven statements, including a statement that "[t]he affiant or declarant is the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) and succeeds to the decedent's interest in the action or proceeding" and that "[n]o other person has a superior right … to be substituted for the decedent in the pending action or proceeding." (Code Civ. Proc., § 377.32, subd. (a).) Code Civ. Proc. § 377.32, subds. (a)(1) through (7), sets forth the requirements for the affidavit.

Ms. Garcia provided a declaration in compliance with Code Civ. Proc. § 377.32, which provides as follows:

She is the surviving daughter of Plaintiff, who died intestate on October 28, 2024 in the City of Huntington Beach. (Decl. of Garcia, ¶¶ 2, 4). She attached a copy of the death certificate as Exhibit A. (Decl. of Garcia, ¶ 2, Ex. A). Decedent was not married at the time of her death. (Decl. of Garcia, ¶ 3). She is the decedent's sole surviving daughter. (Decl. of Garcia, ¶ 4). Decedent was also survived by one son, Hodari Garcia. (Decl. of Garcia, ¶ 5).

No proceeding is now pending in California for administration of the decedent's estate. The decedent's estate has not been administered in California. (Decl. of Garcia, ¶ 6). She is the decedent's successor in interest as defined in California Code of Civil Procedure § 377.11 and succeed to the decedent's interest in this action. (Decl. of Garcia, ¶ 7). She declares that no other person has a superior right to commence the action or proceeding or to be substituted for the decedent in the pending action or proceeding. (Decl. of Garcia, ¶ 8). Finally, she declares under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

However, the court notes paragraph 8 of Ms. Garcia's declaration regarding Hodari Garcia, and the lack of any further explanation. The court **ORDERS** Ms. Garcia to provide additional information regarding the status of Mr. Garcia and his interest in this litigation. Ms. Garcia shall provide supplemental briefing and/or declarations no later than 7 days prior to the continued hearing date.

Finally, Defendant Earl Wallace submitted an Opposition to the substitution on the basis that Plaintiff's claims against Wallace have already been dismissed, and substitution cannot revive dismissed claims. (See 4/10/25 Order sustaining demurrer [ROA 331]). The Court agrees that substitution does not revive dismissed claims. (See *Exarhos v. Exarhos* (2008) 159 Cal.App.4th 898, 905 ["[A] successor in interest under section 377.11 'steps into [the decedent's] position,' as to a particular action."]).

Ms. Garcia shall give notice.

Case Management Conference

		The Case Management Conference is continued to January 21, 2027, at 1:30 p.m. in this department. Plaintiff to give notice.
7	Davis-Bialuski v. Target Corporation	Off calendar.